

Journeys in Torah Ki Sisa 2024

Dvar Torah Outline — Parashat Ki Tisa: Counting Jews, Shabbat as Ot, and Shvirat HaLuchot as a Lesson in Kedushah

I. Opening frame: Ki Tisa is more than the Eigel

- While emotionally dominated by **חטא העגל**, the parashah opens with major themes:
 1. **Not counting Jews directly** (via כופר נפש / מחצית השקל)
 2. **Shabbat as an אות** and what it signifies
 3. **Shvirat HaLuchot** as a foundational statement about קדושה
 - The drash traces a progression: counting → Shabbat → Eigel/Luchot → return to Shabbat/Regalim as antidote.
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II. The Torah's rule: counting and the danger of "נגף"

A. Core pesukim (Ki Tisa)

- **Shemot 30:12**
 - **כִּי תִשָּׂא אֶת־רֹאשׁ בְּנֵי־יִשְׂרָאֵל לִפְקֹדֵיהֶם וְנָתַנוּ אִישׁ כֹּפֶר נַפְשׁוֹ לַה' בַּפְּקֹד אֲתָם וְלֹא־יְהִי בָהֶם נֶגֶף בַּפְּקֹד אֲתָם**
("When you take a census of the Children of Israel according to their numbers, each man shall give Hashem an atonement for his soul when counting them, so there will not be a plague among them when counting them.")
- Simple message presented:
 - Counting Jews directly risks **עין הרע** and leads to **נגף** (Rashi framing).
 - Therefore the count is **indirect**, via **מחצית השקל**.

B. Two ideas “meet” in the opening of the parashah

- **Census counting** is not annual.
 - **מחצית השקל** is an annual mitzvah for the Mikdash regardless.
 - In Ki Tisa, the מחצית השקל also serves as the **proxy** for counting the people.
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III. The Gemara’s “three sources” — and the “elephant in the room”

A. Yoma: prohibition to count Jews directly

- The Gemara (Yoma, beginning of perek 2) treats it as **assur** to count Jews directly.
- It asks: what is the **source**?

B. Three sources offered by the Gemara

1. Shaul and the war with Amon

- **“וַיִּקְדֹּם בָּזֶק”** (he counted them with “bazek”)
- Understood as **shards of pottery**: count the shards, not the people.

2. Shaul and the war with Amalek

- **“וַיִּקְדֹּם בְּטִלְאִים”** (he counted them with “tela'im”)
- Count via **sheep**, not directly.

3. Hoshea

- **“וְהָיָה מִסְפַּר בְּנֵי-יִשְׂרָאֵל כְּחוֹל הַיָּם אֲשֶׁר לֹא-יִמָּד וְלֹא יִסָּפֵר”**
 (“The number of the Children of Israel will be like the sand of the sea, which cannot be measured and cannot be counted.”)
- The Gemara reads **לֹא יִמָּד וְלֹא יִסָּפֵר** not only as “too many,” but as **prohibitions**.

C. The glaring question

- Why search in Shmuel and Hoshea when Ki Tisa itself says:
 - count with a **כופר נפש**
 - **“וְלֹא-יִהְיֶה בָּהֶם נֶגֶף”**
 - “Any child in cheder” would point to Ki Tisa—so why doesn’t the Gemara?
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IV. Answer #1 — Maharsha: Ki Tisa may be “הלכה לשעה, not “לדורות”

A. Ki Tisa's context: after the Eigel

- Maharsha: the census instruction appears in a setting tied to the **post-העגל-טא** reality (משכן; מוקדם ומאוחר).

B. The vulnerability argument

- Immediately after the Eigel, ישראל are spiritually fragile and exposed.
- So the “plague risk” might be a **special-case risk**.

C. Why we need later sources

- The Gemara seeks proof that the rule is:
 - **הלכה לדורות** (ongoing)
 - not merely **הלכה לשעה** (one-time emergency)
 - Therefore it brings evidence from **centuries later** (Shaul), showing it remains a concern long after the Eigel.
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V. Answer #2 — Responsa “Makom Shmuel”: Ki Tisa might not forbid direct counting at all

A. A startling reread of the pasuk

- The pasuk can be read as:
 - you **may** count directly,
 - but afterward each counted person must give **כופר נפשו** to avert danger.

B. “כופר” implies after-the-fact repair

- The word **כפר** often connotes **undoing/atoning** for something already done, not necessarily preventing it in advance.

C. Therefore the Gemara needs clearer proof-texts

- In Shmuel, it's unmistakable that the count is done **indirectly**:
 - pottery shards / sheep.
- In Hoshea, “לא ימד ולא יספר” reads like a direct ban.

VI. Returning to Ki Tisa with Navi in hand: Navi as “the first commentary on Chumash”

A. After seeing Shmuel/Hoshea, Ki Tisa becomes clearer

- With corroboration, we return and say:
 - ultimately, the core idea is in our parashah,
 - but we needed Navi to clarify:
 - that it's **ongoing**
 - and that it means **no direct counting**

B. A broad principle: Nevi'im/Ketuvim explicate Torah

- רבי יוחנן (Ta'anit 9): impossibility that something in Ketuvim has no allusion in Torah
- Reversal framing:
 - Everything explicit later is **already alluded to** earlier; later books function as ** פירוש**.

C. Netziv: why Nevi'im/Ketuvim came after the Eigel

- Gemara (Nedarim): **אלמלא חטאו ישראל בעגל** we would not have received Nevi'im/Ketuvim.
- Netziv: not a “reward for sin,” but a necessity:
 - post-Eigel, our spiritual perception dulled,
 - we needed external elaboration to highlight what Torah already contains.

VII. Shabbat reappears: Shabbat as an אות between Hashem and Israel

A. The central pasuk

- **Shemot 31:13**
 - **וְאַתָּה דַּבֵּר אֶל-בְּנֵי-יִשְׂרָאֵל לֵאמֹר אַךְ אֶת-שַׁבָּתִתִּי תִשְׁמְרוּ כִּי אוֹת הוּא בֵּינִי וּבֵינֵיכֶם לְדֹרֹתֵיכֶם לְדַעַת כִּי אֲנִי ה' מְקַדְּשְׁכֶם**
 (“But you, speak to the Children of Israel, saying: However, you must keep My Sabbaths, for it is a sign between Me and you for your generations, to know that I am Hashem Who sanctifies you.”)

B. Rashi: what is the sign?

- On "כִּי אֹתָהּ הוּא בְּיָמֵינוּ וּבְיָמֵיכֶם"
 - אות גדולה היא בינינו: it signifies:
 - שִׁבְחָתִי בָכֶם (I chose you)
 - וְהִנַּחֲלִיתִי לָכֶם אֶת יוֹם מְנוּחָתִי לְמִנוּחָהּ (I bequeathed you My day of rest)

C. The underlying question Rashi answers

- Shabbat is about **Creation**—a universal truth.
 - Why is Shabbat uniquely entrusted to Israel?
 - Answer: recognizing the Creator is universal, but bearing the covenantal "sign" of Shabbat is Israel's unique role.
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VIII. Meshech Chochmah: why Israel are the "flag-bearers" of Shabbat

A. Shabbat's full message is not only Creator, but Supervisor

- Creation is not "made and abandoned."
- Shabbat proclaims:
 - purpose
 - ongoing hashgachah
 - divine involvement in history

B. Israel as living testimony to Shabbat

- The Jewish national survival "against all odds" is evidence of divine supervision.
- Therefore Israel are the appropriate keepers of the day that declares:
 - Hashem is still involved.

C. Shabbat as "bride": a spousal partnership

- (from Lecha Dodi; rooted in Gemara about receiving Shabbat) "בואי כלה"
 - Symbolism:
 - Shabbat and Israel are "spouses" in the shared mission of proclaiming Hashem's מלכות and השגחה.
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IX. Kiddush's two themes: "זכרון למעשה" and "בראשית" and "זכר ליציאת מצרים"

A. The common question

- Shabbat predates Yetziat Mitzrayim—why say it is also **זכר ליציאת מצרים**?

B. The offered synthesis

- Shabbat's universal truth is expressed covenantally through the nation that left Egypt.
- Israel's redemption makes them the people who can embody Shabbat's message.

C. R. Shlomo Zalman Auerbach's insight: not repetition, but a grammatical turning point

- In Friday night Kiddush:
 - "ושבת קדשו באהבה וברצון הנחילנו" (third person: "His Shabbat")
 - later: "ושבת קדשך באהבה וברצון הנחלתנו" (second person: "Your Shabbat")
- The pivot happens when we move from:
 - **Creation** (we speak about Him)
 - to **Yetziat Mitzrayim** (we speak to Him)
- Yetziat Mitzrayim transforms the relationship from distant Creator to engaged Redeemer.

D. Shabbat and "מלכות"

- Prayer line: "ישמחו במלכותך שומרי שבת וקוראי ענג"
 - Why kingship specifically on Shabbat?
 - governance/supervision = מלכות
 - Shabbat's message is Creator **and** ruling King.
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X. Shvirat HaLuchot: the crisis and Moshe's traumatic act

A. The pasuk of breaking

- **Shemot 32:19**
 - "וַיְהִי כַּאֲשֶׁר קָרַב אֶל־הַמָּסָנָה וַיֵּרָא אֶת־הַעֲגֹל וּמַחֲלַת וְסִר־אֹפֶן מִשֶּׁה וַיִּשְׁלַךְ מִדָּו אֶת־הַלֹּחֹת וַיִּשְׂבֹּר אֹתָם תַּחַת הַקָּר"ו

(“When he drew near the camp and saw the calf and the dancing, Moshe’s anger flared; he threw the tablets from his hands and shattered them at the foot of the mountain.”)

B. The core question

- If Israel is unworthy, why not withdraw the luchot?
 - Why **shatter** them—destroy the holiest object?
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XI. Meshech Chochmah’s big thesis: no object has independent קדושה

A. קדושה is bestowed, not self-generated

- Holy times/places/objects exist—but none are inherently holy as autonomous power.
- Kedushah is always **received from Hashem** and aligned with His will.

B. “מקדשי תיראו” clarified by Chazal

- Gemara (Yevamot 6):
 - “לא מן המקדש אתה ירא אלא ממי שהזהיר על המקדש”
 (“It is not the Mikdash that you fear, but the One Who warned about the Mikdash.”)
- The awe is directed to Hashem, not to the building as an independent force.

C. The danger of “intrinsic holiness”: it becomes עבודה זרה

- If people attribute independent power to objects, objects become alternative “sources.”

D. The Plishtim as a model case

- When they capture the Aron, they speak as if the object itself is the deity/power:
 - “מי יצילנו מיד האֱלֹהִים הַאֲדִירִים הָאֵלֶּה”
 (“Who will save us from the hand of these mighty gods?”)
 - They see the Aron itself as the punishing power.
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XII. The Eigel as misdirected object-power—and Moshe as “objectified”

A. Israel had not fully escaped Egyptian pagan reflexes

- In crisis, they revert to a tangible object as “power.”

B. The replacement logic reveals a deeper distortion

- The Eigel is presented as a replacement for Moshe.
- But if an object can replace Moshe, it implies they were relating to Moshe with a quasi-object power dynamic.

C. Their language shows the problem

- **Shemot 32:1**

- **“...קום עֲשֵׂה־לָנוּ אֱלֹהִים אֲשֶׁר יֵלְכוּ לִפְנֵינוּ כִּי זֶה מֹשֶׁה הָאִישׁ אֲשֶׁר הָעֵלָנוּ מֵאֶרֶץ מִצְרַיִם לֹא יָדַעְנוּ מַה־בָּיָה לוֹ”**

(“...Rise, make us a god that will go before us, for this Moshe—the man—who brought us up from Egypt, we do not know what happened to him.”)

- Hashem echoes the same accusation to Moshe (conceptually): they attribute redemption to Moshe as source rather than agent.

D. Side point: Moshe absent from the Haggadah’s praise

- Cited idea (Vilna Gaon): Moshe’s name is essentially absent on Seder night to avoid repeating the error of crediting the agent as the source.

XIII. Why Moshe broke the luchot: preventing the next “Eigel”

A. The luchot could become an idol

- If the people still believe objects have independent holiness/power:
 - the luchot would become “the next calf.”
- Breaking them is a shock that teaches:
 - holiness without alignment to Hashem’s will is not autonomous “power.”

B. Reclaiming the concept of קדושה

- Moshe's act "redeems" kedushah from object-worship:
 - kedushah is only kedushah as a conduit to Hashem.

C. Hashem's approval: the first "וישר כח"

- In the next chapter, Hashem references "אֲשֶׁר שִׁבְרָתָ"א
- Chazal read אשר as אישור:
 - "וישר כחך ששברת" ("Well done that you broke them.")
- The broken luchot were, for that moment, a greater service than whole luchot.

D. Both sets in the Aron: the enduring lesson

- Gemara: both the intact second luchot and the broken first luchot reside together.
 - Symbolism highlighted:
 - first: made by Hashem → lies broken
 - second: made by Moshe → stands whole
 - Teaching: holiness is not "material origin," but relationship to Hashem's רצון.
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XIV. Shabbat immediately before the Eigel: Shabbat as the antidote

A. סמיכות פרשיות

- Torah sequence: Shabbat command → immediately the Eigel.
- Message: internalizing Shabbat (Creator + ongoing Supervisor) would have made the Eigel impossible.

B. "Light-source" metaphor for holiness

- Objects reflect holiness like objects reflect light:
 - if the source stops "beaming," nothing retains independent light.
 - Shabbat trains the mind away from object-power toward the living Source.
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XV. After the Eigel: Regalim return, and Shabbat returns inside them

A. Why the שלוש רגלים are repeated (Shemot 34)

- After the Eigel, the Torah restates:
 - Pesach, Shavuot, Sukkot
- They serve as an “easier connector”:
 - national lived history of Hashem’s supervision (redemption, guidance, harvest dependence)

B. Shabbat is interjected into the Regalim section

- In the middle of the מועדים discussion:
 - **Shemot 34:21**
 - “שֵׁשֶׁת יָמִים תַּעֲבֹד וּבַיּוֹם הַשְּׁבִיעִי תִשָּׁבֵת”
 (“Six days you shall work, and on the seventh day you shall rest.”)
- Unusual structure:
 - not simply Shabbat first then festivals,
 - but Shabbat woven into them → themes are intermingled.

C. Reading this section on Pesach/Sukkot: why specifically on Shabbat Chol HaMoed

- This Torah portion is also read on **Shabbat Chol HaMoed Pesach/Sukkot**.
- Meaning:
 - the מועדים are meant to amplify Shabbat,
 - so the best time to read it is precisely when Shabbat and the festival meet.

XVI. Closing synthesis: the ongoing mission of Shabbat against “object-power”

- The parashah’s movement teaches an enduring pattern:
 1. **Counting Jews**: a spiritual reality where direct enumeration risks harm; Navi clarifies Torah.
 2. **Shabbat as אֹת**: Hashem chose Israel and entrusted them with His day as covenant-sign.

3. **The Eigel and Shvirat HaLuchot**: smashing the holiest object to destroy the illusion of independent קדושה.

4. **Shabbat + Regalim**: lived experiences of Hashem's supervision restore the Shabbat message.

- Practical spiritual takeaway:

- The more Shabbat is absorbed as awareness of Hashem's מלכות and involvement,
- the less room there is for any substitute "power," and the more Israel and Shabbat reinforce each other:

"לדעת כי אני ה' מקדשכם" (to know that I am Hashem Who sanctifies you).